

Court No. - 21

Case :- WRIT - C No. - 17190 of 2023

Petitioner :- Khurseed Ahmad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Veerendra Kumar Goutam

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The instant petition has been filed challenging checking report dated 12.5.2022, provisional assessment notice dated 17.5.2022 and final assessment notice dated 13.10.2022, issued by the respondent-Electricity Department, in case of theft of electricity.
2. Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department, on instructions states that the impugned assessment orders have been withdrawn and that the petitioner had been granted seven days time to file affidavit and documentary evidence, so that a fresh order is passed.
3. In view of the above statement, nothing further survives to be decided in the instant case. It is left open to the respondents to proceed further strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.
4. The petition is disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.5.2023

Jaideep/-